

No. 26-10936

**IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

AMERICAN SECURITIES ASSOCIATION and CITADEL SECURITIES LLC,
Petitioners,

v.

UNITED STATES SECURITIES AND EXCHANGE COMMISSION,
Respondent.

ON PETITION FOR REVIEW OF AN ORDER OF THE
UNITED STATES SECURITIES AND EXCHANGE COMMISSION
SEC RELEASE NO. 34-105003

**AMENDED CERTIFICATE OF INTERESTED PERSONS AND
CORPORATE DISCLOSURE STATEMENT BY
THE NASDAQ STOCK MARKET, LLC; NASDAQ GEMX,
LLC; NASDAQ ISE, LLC; NASDAQ MRX, LLC; NASDAQ
PHLX, LLC; AND NASDAQ TEXAS, LLC**

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Stock Market, LLC; Nasdaq GEMX,
LLC; Nasdaq ISE, LLC; Nasdaq MRX,
LLC; Nasdaq PHLX, LLC; and Nasdaq
Texas, LLC*

**UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

**CERTIFICATE OF INTERESTED PERSONS AND CORPORATE
DISCLOSURE STATEMENT**

Pursuant to Federal Rule of Appellate Procedure 26.1 and 11th Circuit Rule 26.1-1, Movants The Nasdaq Stock Market, LLC; Nasdaq GEMX, LLC; Nasdaq ISE, LLC; Nasdaq MRX, LLC; Nasdaq PHLX, LLC; and Nasdaq Texas, LLC provide the following certificate of interested persons.

The undersigned counsel of record certify that the following listed persons and entities as described in Eleventh Circuit Rule 26.1-2 have an interest in the outcome of this case. These representations are made in order that the judges of this Court may evaluate possible disqualification or recusal.

1. **24X National Exchange LLC**, subject to the challenged order as a member of Proposed Intervenor Consolidated Audit Trail, LLC (“CAT LLC”)
2. **American Securities Association**, Petitioner
3. **ArentFox Schiff LLP**, counsel for Intervenorors Cboe BYX Exchange, Inc.; Cboe BZX Exchange, Inc.; Cboe C2 Exchange, Inc.; Cboe EDGA Exchange, Inc.; Cboe EDGX Exchange, Inc.; and Cboe Exchange, Inc.
4. **Ballard Spahr LLP**, counsel for Intervenorors The Nasdaq Stock Market, LLC; Nasdaq GEMX, LLC; Nasdaq ISE, LLC; Nasdaq MRX, LLC; Nasdaq PHLX, LLC; and Nasdaq Texas, LLC
5. **Berman, Ari M.**, Pillsbury Winthrop Shaw Pittman LLP, counsel for Intervenorors New York Stock Exchange LLC; NYSE American LLC; NYSED Arca, Inc.; NYSE National, Inc.; and NYSE Texas, Inc.

6. **Borse Dubai, Ltd.**, owner of 10% or more of Nasdaq, Inc.'s shares
7. **BOX Exchange LLC**, subject to the challenged order as a member and participant of CAT LLC
8. **Boyle, Gregory M.**, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC
9. **Cboe BYX Exchange, Inc.**, Intervenor, subject to the challenged order as a member and participant of CAT LLC
10. **Cboe BZX Exchange, Inc.**, Intervenor, subject to the challenged order as a member and participant of CAT LLC
11. **Cboe C2 Exchange, Inc.**, Intervenor, subject to the challenged order as a member and participant of CAT LLC
12. **Cboe EDGA Exchange, Inc.**, Intervenor, subject to the challenged order as a member and participant of CAT LLC
13. **Cboe EDGX Exchange, Inc.**, Intervenor, subject to the challenged order as a member and participant of CAT LLC
14. **Cboe Exchange, Inc.**, Intervenor, subject to the challenged order as a member and participant of CAT LLC
15. **Cboe Global Markets, Inc. (BATS: CBOE)**, indirect owner of 10% or more of interest in CAT LLC, and direct or indirect parent company of Cboe BYX Exchange, Inc.; Cboe BZX Exchange, Inc.; Cboe C2 Exchange, Inc.; Cboe EDGA Exchange, Inc.; Cboe EDGX Exchange, Inc.; and Cboe Exchange, Inc.
16. **Citadel Securities GP LLC**, parent company of Petitioner Citadel Securities LLC
17. **Citadel Securities LLC**, Petitioner
18. **Connolly, J. Michael**, Consovoy McCarthy PLLC, counsel for Petitioner American Securities Association
19. **Consolidated Audit Trail, LLC**, Intervenor
20. **Consovoy McCarthy PLLC**, counsel for Petitioner American Securities

Association

21. **Deutsch, Elizabeth**, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC
22. **Dinkle, Christopher S.**, Jones Day, counsel for Petitioner Citadel Securities LLC
23. **Financial Industry Regulatory Authority, Inc.**, subject to the challenged order as a member and participant of CAT LLC
24. **Francisco, Noel J.**, Jones Day, counsel for Petitioner Citadel Securities LLC
25. **Gershengorn, Ian Heath**, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC
26. **Greenwalt III, Paul E.**, ArentFox Schiff LLP, counsel for Intervenor Cboe BYX Exchange, Inc.; Cboe BZX Exchange, Inc.; Cboe C2 Exchange, Inc.; Cboe EDGA Exchange, Inc.; Cboe EDGX Exchange, Inc.; and Cboe Exchange, Inc.
27. **Hardin, Tracey A.**, counsel for Respondent United States Securities and Exchange Commission
28. **Heckendorn, J. Maxwell**, ArentFox Schiff LLP, counsel for Intervenor Cboe BYX Exchange, Inc.; Cboe BZX Exchange, Inc.; Cboe C2 Exchange, Inc.; Cboe EDGA Exchange, Inc.; Cboe EDGX Exchange, Inc.; and Cboe Exchange, Inc.
29. **Intercontinental Exchange, Inc. (NYSE: ICE)**, indirect owner of 10% or more of interest in CAT LLC, and indirect parent of New York Stock Exchange LLC; NYSE American LLC; NYSE Arca, Inc; NYSE National, Inc.; and NYSE Texas, Inc.
30. **International Securities Exchange Holdings, Inc.**, sole LLC member of Nasdaq GEMX, LLC; Nasdaq ISE, LLC; and Nasdaq MRX LLC
31. **Investor AB**, owner of 10% or more of Nasdaq, Inc.'s shares
32. **Investors' Exchange, LLC**, subject to the challenged order as a member and participant of CAT LLC

33. **Jenner & Block LLP**, counsel for Intervenor Consolidated Audit Trail, LLC
34. **Jones Day**, counsel for Petitioner Citadel Securities LLC
35. **Kastenbergh, Stephen J.**, Ballard Spahr LLP, counsel for Intervenor The Nasdaq Stock Market, LLC; Nasdaq GEMX, LLC; Nasdaq ISE, LLC; Nasdaq MRX, LLC; Nasdaq PHLX, LLC; and Nasdaq Texas, LLC
36. **Lantieri III, Paul**, Ballard Spahr LLP, counsel for Intervenor The Nasdaq Stock Market, LLC; Nasdaq GEMX, LLC; Nasdaq ISE, LLC; Nasdaq MRX, LLC; Nasdaq PHLX, LLC; and Nasdaq Texas, LLC
37. **Long-Term Stock Exchange, Inc.**, subject to the challenged order as a member and participant of CAT LLC
38. **Lucas, Brinton**, Jones Day, counsel for Petitioner Citadel Securities LLC
39. **MacLean, Matthew J.**, Pillsbury Winthrop Shaw Pittman LLP, counsel for Intervenor New York Stock Exchange LLC; NYSE American LLC; NYSE Arca, Inc.; NYSE National, Inc.; and NYSE Texas, Inc.
40. **Madigan, Sarah M.**, Pillsbury Winthrop Shaw Pittman LLP, counsel for Intervenor New York Stock Exchange LLC; NYSE American LLC; NYSE Arca, Inc.; NYSE National, Inc.; and NYSE Texas, Inc.
41. **Marshall, Jonathan J.**, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC
42. **Matro, Daniel**, counsel for Respondent United States Securities and Exchange Commission
43. **McGranahan, J. Russell**, counsel for Respondent United States Securities and Exchange Commission
44. **MEMX LLC**, subject to the challenged order as a member and participant of CAT LLC
45. **Miami International Holdings, Inc. (NYSE: MIAX)**, indirect owner of 10% or more of interest in Cat LLC, and indirect parent company of Miami International Securities Exchange LLC; MIAX Emerald, LLC; MIAX PEARL, LLC; and MIAX Sapphire, LLC

46. **Miami International Securities Exchange LLC**, subject to the challenged order as a member and participant of CAT LLC
47. **MIAX Emerald, LLC**, subject to the challenged order as a member and participant of CAT LLC
48. **MIAX PEARL, LLC**, subject to the challenged order as a member and participant of CAT LLC
49. **MIAX Sapphire, LLC**, subject to the challenged order as a member and participant of CAT LLC
50. **Molzberger, Michael K.**, ArentFox Schiff LLP, counsel for Intervenors Cboe BYX Exchange, Inc.; Cboe BZX Exchange, Inc.; Cboe C2 Exchange, Inc.; Cboe EDGA Exchange, Inc.; Cboe EDGX Exchange, Inc.; and Cboe Exchange, Inc.
51. **Montgomery, Sophia W.**, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC
52. **Nasdaq GEMX, LLC**, Intervenor, subject to the challenged order as a member and participant of CAT LLC
53. **Nasdaq, Inc. (Nasdaq: NDAQ)**, sole owner of LLC interest in The Nasdaq Stock Market, LLC and Nasdaq PHLX, LLC, and parent company of Nasdaq Texas, LLC
54. **Nasdaq ISE, LLC**, Intervenor, subject to the challenged order as a member and participant of CAT LLC
55. **Nasdaq MRX, LLC**, Intervenor, subject to the challenged order as a member and participant of CAT LLC
56. **Nasdaq PHLX LLC**, Intervenor, subject to the challenged order as a member and participant of CAT LLC
57. **The Nasdaq Stock Market LLC**, Intervenor, subject to the challenged order as a member and participant of CAT LLC
58. **Nasdaq Texas, LLC**, Intervenor, subject to the challenged order as a member and participant of CAT LLC
59. **New York Stock Exchange LLC**, Intervenor, subject to the challenged

order as a member and participant of CAT LLC

60. **NYSE American LLC**, Intervenor, subject to the challenged order as a member and participant of CAT LLC
61. **NYSE Arca, Inc.**, Intervenor, subject to the challenged order as a member and participant of CAT LLC
62. **NYSE National, Inc.**, Intervenor, subject to the challenged order as a member and participant of CAT LLC
63. **NYSE Texas, Inc.**, Intervenor, subject to the challenged order as a member and participant of CAT LLC
64. **Oliwenstein, David**, Pillsbury Winthrop Shaw Pittman LLP, counsel for Intervenor New York Stock Exchange LLC; NYSE American LLC; NYSED Arca, Inc.; NYSE National, Inc.; and NYSE Texas, Inc.
65. **Phillips, David**, Jones Day, counsel for Petitioner Citadel Securities LLC
66. **Pillsbury Winthrop Shaw Pittman LLP**, counsel for Intervenor New York Stock Exchange LLC; NYSE American LLC; NYSED Arca, Inc.; NYSE National, Inc.; and NYSE Texas, Inc.
67. **Rabbitt, Brian C.**, Jones Day, counsel for Petitioner Citadel Securities LLC
68. **Templin, Hannah**, Jones Day, counsel for Petitioner Citadel Securities LLC
69. **United States Securities and Exchange Commission**, Respondent
70. **The Vanguard Group, Inc.**, owner of 10% or more of Nasdaq, Inc.
71. **Warnke, Anne S.**, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC

No publicly traded company or corporation, other than those identified above or in the certificates of interested persons filed by Petitioners on April 2, 2026, as amended on May 11, 2026; Respondent on April 7, 2026; Intervenor CAT LLC on April 1, 2026 and April 27, 2026; Intervenor Cboe entities on April 13, 2026, as amended on May 4, 2026; and Intervenor Cboe, Nasdaq, and NYSE entities on April 27, 2026, has an interest in the outcome of this case. Movants will file an amended certificate of interested persons should they become aware of a change in interests that would affect the disclosures as required by Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rule 26.1-4.

Date: May 28, 2026

/s/ Paul Lantieri III

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Market LLC, Nasdaq GEMX, LLC, Nasdaq
ISE, LLC, Nasdaq MRX, LLC, Nasdaq
PHLX LLC; and Nasdaq Texas, LLC*

CERTIFICATE OF SERVICE

I certify that on May 28, 2026, I electronically filed the foregoing with the United States Court of Appeals for the Eleventh Circuit through the Court's CM/ECF system. Parties represented by registered CM/ECF users will be served by the CM/ECF system.

/s/ Paul Lantieri III

Paul Lantieri III

CERTIFICATE OF ELECTRONIC SUBMISSION

I certify that on May 28, 2026, I electronically filed the foregoing with the United States Court of Appeals for the Eleventh Circuit through the Court's CM/ECF system. I certify that (1) any required privacy redactions have been made, (2) the electronic submission of this document is an exact copy of any corresponding paper document, and (3) the document has been scanned for viruses with the most recent version of a commercial virus scanning program and is free from viruses.

/s/ Paul Lantieri III

Paul Lantieri III